

An update on my Warez book: a book about the artforms of the high-level piracy scene

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I am, at present, working on a book currently entitled *Warez: The Economic Artforms and Illicit Crafts of the Topsite Scene*, under contract with punctum books. The title has changed since it went under contract in order to better reflect the content – and it might well change again. However, I today wrote some paragraphs that cut to the core of my argument in this book and that I thought I would share as an update of my understanding the Warez Scene and its illicit subcultures.

If one is to understand the motivations of Warez sceners, it is first necessary to grasp the histories and cultures from which they emerged. In the case of the contemporary high-level topsite piracy Scene, this actually equates to understanding two differing artistic/aesthetic cultural roots. For an important part of the Scene is its intersection with two very specific digital art communities: the DemoScene and the ASCII Art space. Indeed, it is due to the shared roots with the former of these two activities that the Scene is even called ‘the Scene’. In this book I turn to the the background contexts of the DemoScene and also chart a history of ASCII Art that pays attention to computational colonialism hidden within its walls, alongside a lineage of concrete poetry and information aesthetics. For one of the most curious aspects of the Scene is that, while, today, it is in some ways very distant from its legally sound cousins, aesthetic practices have always been core to

its make-up, particularly among the class of user known as crackers. Hence, to understand the Scene in its contemporary iterations, we must look back to previous eras of home computer hobbyist culture, beginning in the 1980s.

The traditional account of the Warez Scene and its root in BBS systems is offered by Douglas Thomas, who notes the emergence of a new ‘logic of reproduction’, one in which the distinction between the original and the copy is erased in the digital world. ‘Unlike aesthetic representation’, writes Thomas, ‘the logic of code does not exalt the original over the copy’ (Thomas, Douglas, ‘Innovation, Piracy and the Ethos of New Media’, in *The New Media Book*, ed. by Dan Harries (London: British Film Institute, 2004), pp. 82–91). That is, in the digital space, it is usually presumed that once all costs have been sunk to make the original, its reproduction can occur ad infinitum without any detrimental loss. This leads to various logics of open-source software but also to the open access movement in academic publishing. It can also lead, as I have argued, to a type of digital commodity fetishism, where people mistake the near-zero cost of reproduction with a near-zero cost of producing/labour invested in the first copy (Eve, Martin Paul, ‘The Great Automatic Grammatizator: Writing, Labour, Computers’, *Critical Quarterly*, 59.3 (2017), 39–54 <https://doi.org/10.1111/criq.12359>).

This ethos may be true for the development of widespread P2P networks, via Napster, as Thomas suggests and the sharing therein. However, it is my fundamental argument in this book that this view is mistaken with respect to the Warez Scene and even in regard of the Bulletin Board Systems to which Thomas gestures. The rules and strictures of the Scene re-inscribe notions of originality and the importance of being the ‘first’ to release the ‘liberated’ copy. There is a fundamental valorisation of the speed to a ‘new original’. The craft of the crack is exemplified in a release – and a logic of swiftness and scarcity is embodied in a group’s supply chain. Further, because the Warez Scene is directly descended from the (totally legal) DemoScene, where programming skill, musical ability, and visual aesthetic flare were key elements of its practice, the Warez Scene should be understood primarily as an *aesthetic subculture*.

If one is to comprehend this ethos – of software piracy as a skilled aesthetic form in which credit and authorship attribution is sought – one needs to think of the Warez Scene more broadly than a culture in which individuals are merely ripping others off. Certainly, there are negative economic

effects from the Scene upon those who create original material. But the artefacts created by the Scene – releases, as well as the para-demos and NFO files – are probably best considered, if one truly wishes to get inside the Scene mentality, as remix productions. These are code-based modifications to software that exhibit skill and technicality in a surface reproduction that is identical to a commercially available artefact, but that behave differently ‘under the hood’. That is, for an analogy, sophisticated cracking outfits in the software space seek to reverse engineer the oil painting, the Mona Lisa, only to recreate its exact form, except using acrylic paints.

Reputations in the Scene are made or broken by artistic success of crackers, the business acumen of covert suppliers, the skill and connectedness of their couriers. Those who debate the originality of these works have had their day in court and been found to be the victors; there is no disputing the Scene’s illegality. But one only has to look at the development of various sampling music cultures to see how the appropriation of existing work, re-made into a new artefact, can have significant artistic merit. The problem for the Scene with this argument, of course, (and the unfairness to those musical cultures) is that the Scene seeks to remake an artefact that already exists, yet now outside of the sphere of monetary exchange. The fundamental question then becomes: where is the line at which originality it inscribed?

At the same time, the Scene nonetheless very much has its own cultures of exchange – a currency that attempts to set itself outside of monetary real-world economies. Hence, it does not matter that, as Thomas notes, the Warez Scene puts itself outside of money and refuses to operate on any ‘pay sites’. The basic fact of the matter is that sceners compete for prestige, that translates into Site access, which translates into access to warez – about which they actually care very little – but also into reputation, esteem, and prestige – about which they care a great deal. It is in tracing the Scene’s roots to aesthetic practices that value scarcity, primacy, originality, skill, craft, elitism, organization, rankings, prestige, reputation, and even trustworthiness, honour, and loyalty, that we can truly better get inside the mind of the pirate.

Image by [Ahmed Adly on Unsplash](#).